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SUPREME COURT OF BRITISH COLUMBIA â Victoria No. FL-260482

FORM F32 (RULE 10-6 (9))

No. FL-260482
Victoria Registry

IN THE SUPREME COURT OF BRITISH COLUMBIA

BETWEEN:
ELEANOR VANCE
CLAIMANT / APPLICANT
AND:
ARTHUR VANCE
RESPONDENT

APPLICATION RESPONSE OF ARTHUR VANCE

Application response of: The Respondent, Arthur Vance

PART 1: ORDERS CONSENTED TO

The Respondent consents to the granting of the orders sought in the following paragraphs of Part 1 of the Notice of Application:

1. Paragraph 1 (in part): The Respondent consents to paying interim child support for Liam and Chloe based on his actual personal line 15000 guideline income of $112,500, yielding monthly table support of $1,642 commencing December 1, 2026.
2. Paragraph 4 (in part): The Respondent consents to delivering the 2024 Notice of Assessment and annual accountant compilation report for Vance Holdings Ltd. within 30

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days.

PART 2: ORDERS OPPOSED

The Respondent opposes the granting of the orders sought in the following paragraphs of Part 1
of the Notice of Application:
1. Paragraph 1 (in part): The Respondent opposes imputing $240,000 in income. Retained earnings in
Vance Holdings Ltd. represent necessary working capital and bonded equipment reserves, not cash
available for distribution. Imputation violates section 18 of the Guidelines.
2. Paragraph 2: Opposed as to quantum. The private soccer academy expense was incurred unilaterally
without prior consultation or written consent under section 7(1).
3. Paragraph 3: Opposed. Interim spousal support is premature pending full valuation of the family
home and corporate equity, and the Claimant has full capacity for full-time employment.
4. Paragraph 5: Costs should be costs in the cause.

PART 3: FACTUAL BASIS

1. Vance Holdings Ltd. operates in a volatile marine consulting market. Cash retained in the corporate
account is committed to pending sub-contractor warranties and payroll buffers.
2. The Respondent’s co-shareholder holds a 50% voting interest and has refused shareholder dividend
distributions for the current fiscal quarter.
3. The Respondent has consistently paid voluntary support of $1,600 monthly

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since separation.

PART 4: LEGAL BASIS

1. Federal Child Support Guidelines, sections 16, 17, and 18(1)(a);
2. Supreme Court Family Rules, Rule 10-6;
3. Kowalewich v. Kowalewich, 2001 BCCA 450 (court will not artificially deplete corporate working capital necessary to maintain business viability).

PART 5: MATERIAL TO BE RELIED ON

1. Affidavit #1 of Arthur Vance, sworn November 25, 2026;
2. Form F8 Financial Statement of Arthur Vance, filed November 25, 2026.

DATED: November 27, 2026.

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Robert Sterling
Counsel for the Respondent, Arthur Vance